

HOUSE BILL 1964

By Farmer

AN ACT to amend Tennessee Code Annotated, Title 16,
Chapter 15, Part 50, relative to courts of general
sessions or juvenile jurisdiction.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 16-15-5001, is amended by deleting "For the purpose of determining" in subsection (a) and substituting instead "Effective until September 1, 2030, for the purpose of determining" and adding the following new subsections:

(e) Subsections (a)–(d) apply to determinations of compensation, salaries, and adjustments until September 1, 2030, and are deleted on September 1, 2030.

Subsections (f)–(i) apply to determinations of compensation, salaries, and adjustments on or after September 1, 2030. This subsection (e) is deleted on September 1, 2030.

(f) Effective September 1, 2030, for the purpose of determining the compensation of a general sessions judge or juvenile judge, the counties of this state are divided into five (5) classes as follows:

(1) Counties having a population of more than forty-nine thousand (49,000) constitute counties of the first class;

(2) Counties having a population of more than thirty-eight thousand (38,000) but not more than forty-nine thousand (49,000) constitute counties of the second class;

(3) Counties having a population of more than thirty thousand (30,000) but not more than thirty-eight thousand (38,000) constitute counties of the third class;

(4) Counties having a population of more than fifteen thousand (15,000) but not more than thirty thousand (30,000) constitute counties of the fourth class; and

(5) Counties having a population of fifteen thousand (15,000) or less, constitute counties of the fifth class.

(g) The class into which a county falls must be determined by the 2020 federal census or a subsequent federal census or a special census conducted by the department of economic and community development.

(h)

(1) For the purpose of determining the compensation of a general sessions judge who presides over a consolidated general sessions court consisting of two (2) or more counties, the populations of all counties served by the court must be added together, and the resultant sum must be increased to the next higher classification for the purpose of determining the class of counties in accordance with subsection (f).

(2) Each county served by a consolidated general sessions court shall pay its proportional share of the compensation of the judge or judges of the consolidated court based on a ratio established by using the population of the county according to the latest available census, compared to the population of the counties comprising the consolidated general sessions court using the latest available census.

(3) For the purposes of this subsection (h) only, the compensation of the judge must be based on what a judge of the next higher classification is to receive on September 1, 2030.

(i)

(1) If a county is in one class as provided in this section on September 1 of the year in which a judge is elected to office and after that date the county moves into a lower class on the basis of a subsequent census, then the salary of the judge must not be diminished during the time for which the judge was elected.

(2) If a county is in one class as provided in this section on September 1 of the year in which a judge is elected to office and after that date the county moves into a higher class on the basis of a subsequent census, then the salary of the judge must be determined by the higher classification for the remainder of the term for which the judge was elected and subsequent terms of office. A judge's salary, for a county moving into a higher classification, must not be less than the salary paid prior to the reclassification.

SECTION 2. Tennessee Code Annotated, Section 16-15-5002, is amended by adding the following new subsections:

(e) Subsections (a)–(d) apply to judges until September 1, 2030, and are deleted on September 1, 2030. Subsections (f)–(h) apply to judges on or after September 1, 2030. This subsection (e) is deleted on September 1, 2030.

(f) All general sessions judges in Class 1, 2, and 3 counties shall devote full time to the duties of the office and are prohibited from the practice of law or any other employment that conflicts with the performance of their duties as judge.

(g) General sessions judges in Class 4 and Class 5 counties are considered part-time judges and are not prohibited from the practice of law or other gainful employment while serving as judge, except to the extent the practice or employment constitutes a conflict of interest.

(h) Notwithstanding this section to the contrary, a judge of the general sessions court in a county, upon adoption of a resolution by a two-thirds (2/3) majority vote of the county legislative body, shall devote full time to the duties of the office and is prohibited from the practice of law or any other employment that conflicts with the performance of the judge's duties as judge.

SECTION 3. Tennessee Code Annotated, Section 16-15-5003, is amended by adding the following new subsections:

(l) Subsections (a)–(k) apply to compensation, salaries, and adjustments for general sessions judges until September 1, 2030, and are deleted on September 1, 2030. Subsections (m)–(aa) apply to compensation, salaries, and adjustments for general sessions and juvenile judges on or after September 1, 2030. This subsection (l) is deleted on September 1, 2030.

(m) The following counties shall continue to set the annual salaries for general sessions judges exercising concurrent juvenile jurisdiction and juvenile judges by existing private acts: Shelby, Davidson, Hamilton, Knox, Williamson, Montgomery, Rutherford, Tipton, Henderson, Lake, Haywood, Putnam, Johnson, Henry, Gibson, and Claibourne.

(n) Except for the counties listed in subsection (m), the annual salaries for general sessions judges exercising concurrent juvenile jurisdiction and juvenile judges in the following classes of counties are as follows:

(1) In counties of the first class, equal to the annual salary of a circuit judge;

(2) In counties of the second class, five percent (5%) less than the annual salary of a circuit judge;

(3) In counties of the third class, fifteen percent (15%) less than the annual salary of a circuit judge;

(4) In counties of the fourth class, twenty-five percent (25%) less than the annual salary of a circuit judge; and

(5) In counties of the fifth class, thirty-five percent (35%) less than annual salary of a circuit judge.

(o) The annual salaries for general sessions judges not exercising concurrent juvenile jurisdiction, and juvenile judges not exercising concurrent general sessions jurisdiction, in the following classes of counties are as follows:

(1) In counties of the first class, equal to the annual salary of a circuit judge;

(2) In counties of the second class, five percent (5%) less than the annual salary of a circuit judge;

(3) In counties of the third class, twenty percent (20%) less than the annual salary of a circuit judge;

(4) In counties of the fourth class, thirty percent (30%) less than the annual salary of a circuit judge; and

(5) In counties of the fifth class, forty percent (40%) less than the annual salary of a circuit judge.

(p) Notwithstanding a law or this part to the contrary, a judge of a general sessions court or juvenile judge must not be paid an annual salary that is greater than the salary paid to a judge of a circuit court.

(q) Notwithstanding a law or this part to the contrary, a general sessions judge who engages in the private practice of law must not receive an increase in annual salary pursuant to this part if the judge is prohibited by law from engaging in private practice.

(r) Beginning July 1, 2031, the annual compensation, salaries, and annual adjustments established under this section must be adjusted annually in accordance with § 8-23-103(2).

(s) The compensation and annual adjustment provisions of this part are minimum levels.

(t) The compensation schedule established by this part is a comprehensive plan, and a salary in excess of the annual salary provided by this part is not available to a general sessions judge or juvenile judge, unless expressly provided and funded by a private act.

(u) This part does not prohibit a county, by public or private act, from compensating its general sessions judge or juvenile judges at levels in excess of what is required by this part. A private or public act in effect on or after September 1, 2030, that provides greater compensation for a general sessions judge than is required by this part prevails over this part to the extent of the judge's amount of compensation.

(v) Notwithstanding a law to the contrary, a judge of a court of general sessions or juvenile judge must not be paid compensation based on both this part and the compensation provisions in a private act.

(w) Notwithstanding a law or public act to the contrary, effective September 1, 2030, the annual salary for a general sessions court judge or juvenile judge who is compensated under this section must be increased over the annual compensation, salary, supplements, and annual adjustments that each judge actually received as of August 31, 2030, and the annual salary must not be decreased unless the county moves into a lower class on the basis of a prior census.

(x) Notwithstanding this part to the contrary, all general sessions court judges or juvenile judges in Class 1-5 counties who are compensated under this part must receive

the same compensation as the most highly compensated general sessions court judge or juvenile judge in the same county classification with the same jurisdiction who is compensated under this section.

(y) On or before June 30, 2030, each general sessions court judge and juvenile judge shall certify to the administrative office of the courts (AOC) the total amount of the judge's actual compensation as of August 31, 2030, the jurisdictions exercised by the judge, the legal basis for exercising the jurisdiction, and whether the judge is compensated under this section or under a public or private act. A certification of the county's chief financial officer of the actual compensation of the judge as of August 31, 2030, or other verifiable proof of the judge's actual compensation, must be included in the information submitted by the judge to the AOC. When all judges have certified the required information to the AOC, the AOC shall report to each general sessions court judge the amount of compensation to be paid to the general sessions court judge beginning on September 1, 2030, based on the information provided by the judge. Thereafter, when a new court is created, a new judge takes office, or a similar change occurs, or upon the completion of a new census and reclassification of a county by change of population, the AOC shall report the amount of compensation to be paid to a judge affected by the change.

(z)

(1) Notwithstanding a law to the contrary, and except for the counties listed in subsection (m), the general sessions and juvenile court costs must be set and collected in the amount prescribed by general law and public or private act. There is levied a county privilege tax on litigation in the following amounts in each civil, criminal, juvenile, and traffic case initiated in a general sessions court or juvenile court in Class 1-5 counties as follows:

- (A) One dollar (\$1.00) in Class 1 counties;
- (B) Two dollars (\$2.00) in Class 2 counties;
- (C) Three dollars (\$3.00) in Class 3 counties;
- (D) Four dollars (\$4.00) in Class 4 counties; and
- (E) Five dollars (\$5.00) in Class 5 counties.

(2) The county litigation tax imposed by subdivision (z)(1) is due and must be collected even if the party, litigant, defendant, or juvenile does not appear in court. From the amount of tax collected, each county of each class shall use it for the exclusive and sole purpose of defraying the compensation, salary, and annual adjustments of the general sessions judges and juvenile judges.

(aa) Each general sessions judge and juvenile judge, whether full-time or part-time, shall continue to exercise the jurisdiction vested with, and exercising, on August 31, 2030, unless changed or modified as allowed by this chapter.

SECTION 4. The headings in this act are for reference purposes only and do not constitute a part of the law enacted by this act. However, the Tennessee Code Commission is requested to include the headings in any compilation or publication containing this act.

SECTION 5. This act takes effect upon becoming a law, the public welfare requiring it.